Title 41—PUBLIC CONTRACTS AND PROPERTY MANAGEMENT

Chapter 50—Public Contracts, Department of Labor

PART 50–204—SAFETY AND HEALTH STANDARDS FOR FEDERAL SUPPLY CONTRACTS

Radiation Standards in Mining; Procedures for Variations

Pursuant to sections 1 and 4 of the Walsh-Healey Public Contracts Act (41 U.S.C. 35 and 38), § 50–204.36(b) of Title 41, Code of Federal Regulations (34 F.R. 14258), which republishes the radiation standards for mining published in the FEDERAL REGISTER on December 28, 1968 (33 F.R. 14258), is hereby amended in the manner indicated below. The essential purpose of the amendments is to encourage employers who are seeking any variation from the radiation exposure limitations described in paragraph (b) of the section to request in writing such a variation within 90 days following the periods of exposure indicated in paragraph (b). In addition, the terms "consecutive 3-month period" and "consecutive 12-month period" used in paragraph (b) are replaced by the terms "calendar quarter" and "calendar year," respectively.

The amendments shall be effective upon publication in the FEDERAL REGISTER. The notice, public procedure, and delay in effective date provisions of section 4 of the Administrative Procedure Act, as codified in 5 U.S.C. 553, are omitted because the rules have no mandatory effect and are minor in nature.

Section 50–204.36(b) is hereby amended by amending subparagraph (1) thereof and by adding thereto an additional subparagraph designated subparagraph (3). As amended § 50–204.36(b) reads as follows:

§ 50–204.36 Radiation standards for mining.

* * * * *

(b)(1) Occupational exposure to radon daughters in mines shall be controlled so that no individual will receive an exposure of more than 2 working level months in any calendar quarter and no more than 4 working level months in any calendar year. Actual exposures shall be kept as far below these values as practicable.

* * * * *

(3) Whenever a variation under subparagraph (2) of this paragraph is sought, a request therefor should be submitted in writing to the Director of the Bureau of Labor Standards, U.S. Department of Labor, Washington, D.C. 20210, within 90 days following the end of the calendar quarter or year, as the case may be.

* * * * *

(Secs. 1, 4, 49 Stat. 2036, 2038; 41 U.S.C. 35, 38)

Signed at Washington, D.C., this 17th day of April 1969.

GEORGE P. SHULTZ,
Secretary of Labor.

[F.R. Doc. 69-4774; Filed, Apr. 22, 1969; 8:46 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter II—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 4633]

[Idaho 2197]

IDAHO

Revocation of Public Land Order No. 2375

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Public Land Order No. 2375 of May 11, 1961, withdrawing the following described lands for use of the Department of the Air Force, is hereby revoked:

BOISE MERIDIAN

T. 4 S., R. 2 E.,
Sec. 18, lot 4, SE¼SW¼, S½SE¼;
Sec. 19, lots 1 and 2, NE¼, E½NW¼, NE¼SW¼, NW¼SE¼.

The area described contains 545.69 acres in Owyhee County.

The land is in the Grandview area. Vegetative cover is primarily sagebrush.

The following described lands have been determined to be "property" within the meaning of the Federal Property and Administrative Services Act of 1949, as amended, and will be administered or disposed of under regulations of the General Services Administration:

Sec. 19, NW¼NE¼, E½NE¼NW¼, E½SE¼NW¼, and SW¼NE¼.

Containing 120 acres.

2. At 10 a.m. on May 22, 1969, the public lands described as follows, shall be open to the operation of the public land laws generally, including the mining laws, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law:

T. 4 S., R. 2 E.,
Sec. 18, lot 4, SE¼SW¼, S½SE¼;
Sec. 19, lots 1 and 2, E½NE¼, W½E½NW¼, NE¼SW¼, NW¼SE¼.

Containing 425.69 acres.

All valid applications received at or prior to 10 a.m. on May 22, 1969, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing. The lands have been open to applications and offers under the mineral leasing laws.

Inquiries concerning the lands should be addressed to the Manager, Land Office, Bureau of Land Management, Boise, Idaho.

HARRISON LOESCH,
Assistant Secretary of the Interior.

APRIL 16, 1969.

[F.R. Doc. 69-4784; Filed, Apr. 22, 1969; 8:47 a.m.]

[Public Land Order 4634]

[Colorado 017938]

COLORADO

Revocation of Air Navigation Site Withdrawal

By virtue of the authority contained in section 4 of the act of May 24, 1928 (45 Stat. 729; 49 U.S.C. 214), it is ordered as follows:

1. The departmental order of December 20, 1948, withdrawing the following described land as Air Navigation Site Withdrawal No. 255, is hereby revoked:

SIXTH PRINCIPAL MERIDIAN

T. 5 S., R. 84 W.,
Sec. 6, NW¼NW¼ of lot 11.
T. 5 S., R. 86 W.,
Sec. 1, SW¼SE¼NE¼SE¼.

The area described contains approximately 5 acres in Eagle County.

The lands are situated near Eagle, Colo. The terrain is steeply north-sloping, with poor quality soils and sparse vegetation.

2. At 10 a.m. on May 22, 1969, the public lands shall be open to operation of the public land laws generally, including the mining laws, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law and procedures. All valid applications received at or prior to 10 a.m. on May 22, 1969, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing. The land has been open to applications and offers under the mineral leasing laws.

Inquiries concerning the lands should be addressed to the Manager, Land Office, Bureau of Land Management, Denver, Colo.

HARRISON LOESCH,
Assistant Secretary of the Interior.

APRIL 16, 1969.

[F.R. Doc. 69-4785; Filed, Apr. 22, 1969; 8:47 a.m.]

[Public Land Order 4635]

[New Mexico 8094]

NEW MEXICO

Partial Revocation of Executive Order No. 6276

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Executive Order No. 6276 of September 8, 1933, which withdrew lands in New Mexico to aid the State in making exchange selections, is hereby revoked so far as it affects the following described lands:

NEW MEXICO PRINCIPAL MERIDIAN

T. 23 S., R. 20 W.,
Sec. 27, S½;
Sec. 34, W½.

The area described contains 640 acres in Hidalgo County.

The lands are located some 13 miles southwest of Lordsburg. They are level and are a part of the South Alkali Flats, a flat-floored bottom of an undrained desert basin. They are nonarable due to flooding and a heavy accumulation of salts in the soils. Vegetative cover consists of a sparse stand of tobosa grass.

2. At 10 a.m. on May 22, 1969, the lands shall be open to operation of the public land laws generally, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications received at or prior to 10 a.m. on May 22, 1969, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

3. The lands will be open to location for nonmetalliferous minerals at 10 a.m. on May 22, 1969. They have been open to applications and offers under the mineral leasing laws and to location for metalliferous minerals.

Inquiries concerning the lands should be addressed to the Manager, Land Office, Bureau of Land Management, Santa Fe, N. Mex.

HARRISON LOESCH,
Assistant Secretary of the Interior.

APRIL 16, 1969.

[F.R. Doc. 69-4786; Filed, Apr. 22, 1969; 8:47 a.m.]

[Public Land Order 4636]

[Arizona 2074, 011033]

ARIZONA

Partial Revocation of Reclamation Withdrawal; Amendment of Public Land Order No. 1626

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), and by virtue of the authority contained in section 3 of the act of June 17, 1902 (32 Stat. 388; 43 U.S.C. 416), as amended, it is ordered as follows:

1. The departmental order of April 23, 1943, withdrawing lands for the Jacques Reservoir Site, is hereby revoked so far as it affects the following described lands:

SITGREAVES NATIONAL FOREST

GILA AND SALT RIVER MERIDIAN

T. 9 N., R. 22 E.,
Sec. 4, lots 3 and 4, SW¼NE¼,S½NW¼, W½NW¼SW¼, N½NE¼SW¼.

The areas described aggregate 240.44 acres in Navajo County.

2. Paragraph 1 of Public Land Order No. 1626 of May 6, 1958, which withdrew lands in the Sitgreaves National Forest, is hereby amended to read as follows:

"Subject to valid existing rights, the following described lands within the Sitgreaves National Forest are hereby withdrawn from appropriation under the mining laws (30 U.S.C., ch. 2), but not from leasing under the mineral leasing laws, in aid of programs of the Department of Agriculture."

3. At 10 a.m. on May 22, 1969, the lands described in paragraph 1 of this order and the lands described in Public Land Order No. 1626, shall be open to such forms of disposition as may by law be made of national forest lands, except that the lands described in Public Land Order No. 1626 shall not be open to appropriation under the mining laws.

HARRISON LOESCH,
Assistant Secretary of the Interior.

APRIL 16, 1969.

[F.R. Doc. 69-4787; Filed, Apr. 22, 1969; 8:47 a.m.]

[Public Land Order 4637]

[Oregon 3963 (Wash.)]

WASHINGTON

Partial Revocation of Reclamation Withdrawal

By virtue of the authority contained in section 3 of the act of June 17, 1902 (32 Stat. 388; 43 U.S.C. 416), it is ordered as follows:

1. The departmental order of December 22, 1905, withdrawing lands for the Yakima Project, is hereby revoked so far as it affects the following described land:

WILLAMETTE MERIDIAN

T. 9 N., R. 27 E.,
Sec. 20, lot 3.

The area described contains 0.30 acre in Benton County.

The land is located about 10 miles west of Richland, Wash., on the left bank of the Yakima River. Vegetative cover is willows and brush, characteristic of streambank vegetation.

2. At 10 a.m. on May 22, 1969, the land shall be open to operation of the public land laws generally, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications received at or prior to 10 a.m. on May 22, 1969, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

3. The land will be open to location under the U.S. mining laws at 10 a.m. on May 22, 1969. It has been open to applications and offers under the mineral leasing laws.

Inquiries concerning the land should be addressed to the Chief, Division of Lands and Minerals Program Management and Land Office, Bureau of Land Management, Portland, Oreg.

HARRISON LOESCH,
Assistant Secretary of the Interior.

APRIL 16, 1969.

[F.R. Doc. 69-4788; Filed, Apr. 22, 1969; 8:47 a.m.]

[Public Land Order 4638]

[Oregon 4157 (Wash.)]

WASHINGTON

Revocation of Air Navigation Site Withdrawal

By virtue of the authority contained in section 4 of the act of May 24, 1928 (45 Stat. 729; 49 U.S.C. 214), it is ordered as follows:

1. The departmental orders of March 9, 1929, and August 1, 1930, withdrawing the following described lands as Air Navigation Site No. 24, are hereby revoked:

WILLAMETTE MERIDIAN

T. 36 N., R. 33 E.,
Sec. 7, lots 11 and 12;
Sec. 18, lot 2.

The areas described aggregate 67.60 acres in Ferry County.

2. At 10 a.m. on May 22, 1969, the lands shall be open to operation of the public land laws generally, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications received at or prior to 10 a.m. on May 22, 1969, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

3. The lands will be open to location under the U.S. mining laws at 10 a.m. on May 22, 1969. They have been open to applications and offers under the mineral leasing laws.

Inquiries concerning the lands should be addressed to the Manager, Land Office, Bureau of Land Management, Portland, Oreg.

HARRISON LOESCH,
Assistant Secretary of the Interior.

APRIL 16, 1969.

[F.R. Doc. 69-4789; Filed, Apr. 22, 1969; 8:47 a.m.]

[Public Land Order 4639]

[Idaho 2563]

IDAHO

Partial Revocation of National Forest Withdrawal

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Public Land Order No. 1567 of December 19, 1957, withdrawing national forest lands as roadside zones, is hereby revoked so far as it affects the following described lands:

LOLO NATIONAL FOREST

BOISE MERIDIAN

Lochsa River (Lewis and Clark Forest Highway No. 16) Roadside Zone

A strip of land 200 feet in width on each side of the centerline of the Lewis and Clark Forest Highway No. 16 through the following legal subdivisions, or so much of said width as may be situated within said subdivisions:

T. 37 N., R. 14 E.,
Sec. 12, NE¼NE¼, W½NE¼.